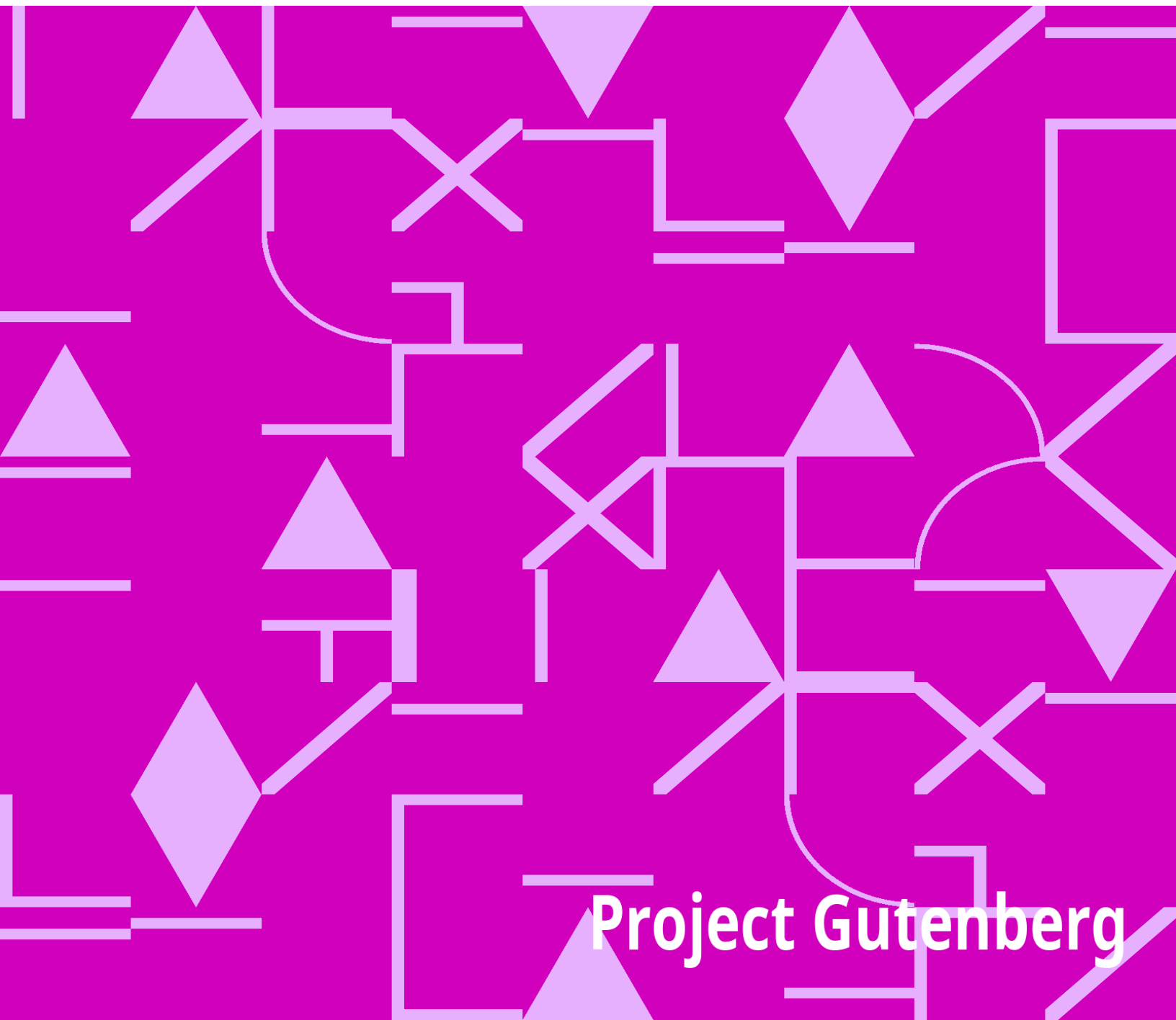


Tales and Novels of J. de La Fontaine — Volume 24

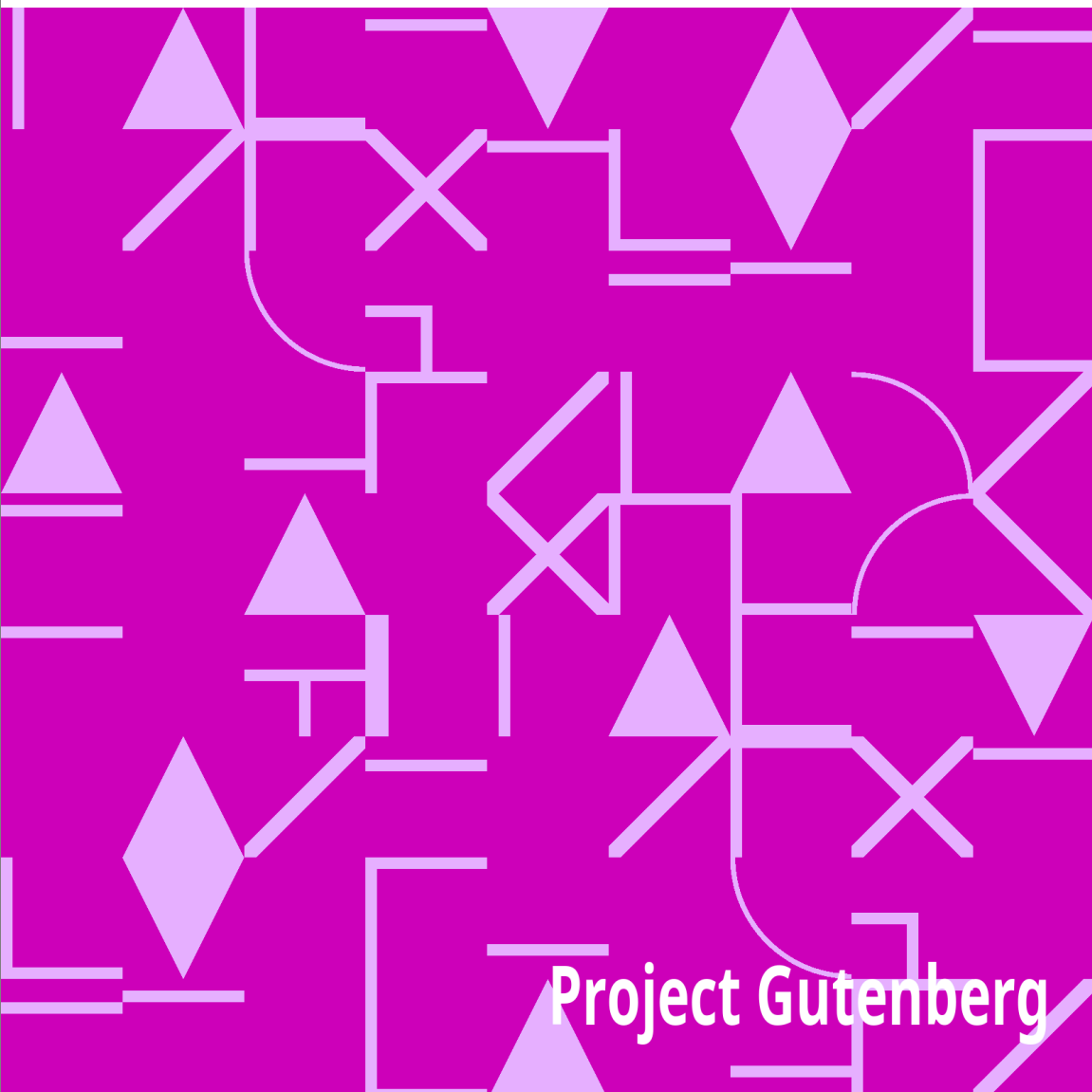
Jean de La Fontaine



Project Gutenberg

**Tales and Novels of J. de La Fontaine —
Volume 24**

Jean de La Fontaine



Project Gutenberg

The Project Gutenberg eBook of Tales and Novels of J. de La Fontaine — Volume 24

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Tales and Novels of J. de La Fontaine — Volume 24

Author: Jean de La Fontaine

Release date: March 1, 2004 [eBook #5298]

Most recently updated: December 28, 2020

Language: English

Other information and formats: www.gutenberg.org/ebooks/5298

Credits: This eBook was produced by David Widger

***** START OF THE PROJECT GUTENBERG EBOOK TALES AND
NOVELS OF J. DE LA FONTAINE — VOLUME 24 *****

This eBook was produced by David Widger

THE TALES AND NOVELS OF J. DE LA FONTAINE

Volume 24.

Contains:

The Indiscreet Confession

The Contract

The Quid Pro Quo, or The Mistakes

THE INDISCREET CONFESSIONS

FAMED Paris ne'er within its walls had got,
Such magick charms as were Aminta's lot,
Youth, beauty, temper, fortune, she possessed,
And all that should a husband render blessed,
The mother still retained her 'neath the wing;
Her father's riches well might lovers bring;
Whate'er his daughter wished, he would provide,
Amusements, jewels, dress, and much beside.

BLITHE Damon for her having felt the dart,
The belle received the offer of his heart;
So well he managed and expressed his flame.
That soon her lord and master he became,

By Hymen's right divine, you may conceive,
And nothing short of it you should believe.

A YEAR had passed, and still our charming pair,
Were always pleased, and blisses seemed to share;
(The honeymoon appeared but just began)
And hopes were entertained to have a son,
When Damon on the subject chanced to touch:
In truth, said he, my soul is troubled much;
There is a fact, my dear, to you I'll tell:
I wish sincerely (since I love so well)
That for another, I had never known
Such fond affection as to you I've shown;
And none but you had entered in my breast,
So worthy ev'ry way to be caressed.
I have howe'er experienced other flame;
The fault's acknowledged: I confess my shame.
'Twas in a wood; the nymph was young and nice,
And Cupid only near to give advice;
So well he managed:—or so ill, you'll say;
A little girl I've living at this day.

WHAT, cried Aminta, now to you I'll state;
What happened once to be your spouse's fate;
I was at home alone, to say the truth,
When thither came by chance a sprightly youth.
The lad was handsome, with engaging mien;
I felt his worth:—my nature is serene;
In short so many things were our employ,
I've still upon my hands a little boy.

THESE words no sooner had escaped the belle,
Than Damon into jealous torments fell;
With rage he left the room; and on his way,
A large pack-saddle near his footsteps lay,
Which on his back he put, then cried aloud,
I'm saddled! see; round quickly came a crowd;
The father, mother, all the servants ran;
The neighbours too; the husband then began
To state the circumstance that gave him pain;
And fully all the folly to explain.

THE reader must not fail to keep in mind;
Aminta's parents were both rich and kind,
And having only her to be their heir,
The aged couple let the youthful pair,
With all their train, within the house reside,
And tranquilly the moments seemed to glide.

THU mother fondly to her daughter flew;
The father followed, keeping her in view;
The dame went in, but he remained without:
To listen he designed beyond a doubt;
The door was on the jar; the sage drew near;
In short, to all they said, he lent an ear;
The lady thus he heard reproach her child:
You're clearly wrong; most silly may be styled;
I've many simpletons and ninnies seen;
But such as you before there ne'er has been:
Who'd have believed you indiscreet like this?
Who forced you to reveal what was amiss?
What obligation to divulge the fact?

More girls than one have failed to be exact;
The Devil's crafty; folks are wicked too;
But that is no excuse, however true;
In convents all of us should be immured,
Till perfectly by Hymen's bands secured.

E'EN I who speak, alas! have troubles met;
Within my bosom oft I feel regret;
Three children ere my marriage I had got;
Have I your father told this secret blot?
Have we together been less happy found?
The list'ner had no sooner heard the sound,
But like a man distracted off he flew;
The saddle's girth, which hazard near him threw;
He took and fastened tightly 'bout his waist,
Then bawled around and round with anxious haste;
I'm girth'd! d'ye see, completely taken in;
The people stared, an 'gan to laugh and grin.
Though each was conscious, if the truth were known;
The ridicule in turn might be his own.

BOTH husbands madly ran from cross to square,
And with their foolish clamours rent the air;
I'm saddled, hooted one; I'm girth'd, said this;
The latter some perhaps will doubt, and hiss;
Such things however should not be disbelieved
For instance, recollect (what's well received),
When Roland learned the pleasures and the charms;
His rival, in the grot, had in his arms,
With fist he gave his horse so hard a blow,
It sunk at once to realms of poignant woe.

Might he not, training, round the hapless beast,
From weight of saddle have its back released,
And putting it upon his own, have cried,
I'm saddled, I'm girth'd, and much beside;
(No matter this or that, since each is good,)
Which Echo would repeat from hill to wood?
You see that truth may be discovered here;
That's not enough; its object should appear;
And that I'll show as further we proceed;
Your full attention I of course shall need.

THE happy Damon clearly seems to me,
As poor a thing as any we shall see;
His confidence would soon have spoiled the whole,
To leave a belle like this without control!
Her simplicity I much admire:—
Confess herself to spouse, as if a friar!
What silliness! imprudence is a word,
Which here to use would truly be absurd.
To my discourse two heads alone remain;
The marriage vow you always should maintain;
Its faith the pair should ever keep in view:
The path of honour steadily pursue.
If some mishap howe'er should chance to glide;
And make you limp on one or t'other side,
Endeavour, of the fault, to make the best,
And keep the secret locked within your breast;
Your own consideration never lose;
Untruth 'tis pardonable then to use.

No doubt my pages nice advice supply;
Is't what I've followed?—No, you may rely!

THE CONTRACT

THE husband's dire mishap, and silly maid,
In ev'ry age, have proved the fable's aid;
The fertile subject never will be dry:
'Tis inexhaustible, you may rely.
No man's exempt from evils such as these:—
Who thinks himself secure, but little sees.
One laughs at sly intrigues who, ere 'tis long,
May, in his turn, be sneered at by the throng:
With such vicissitudes, to be cast down,
Appears rank nonsense worthy Folly's crown.
He, whose adventures I'm about to write,
In his mischances,—found what gave delight.

A CERTAIN Citizen, with fortune large,
When settled with a handsome wife in charge,
Not long attended for the marriage fruit:
The lady soon put matters 'yond dispute;

Produced a girl at first, and then a boy,
To fill th' expecting parent's breast with joy.

THE son, when grown of size, a tutor had,
No pedant rude, with Greek and Latin mad,
But young and smart, a master too of arts,
Particularly learned in what imparts,
The gentle flame, the pleasing poignant pang,
That Ovid formerly so sweetly sang.
Some knowledge of good company he'd got;
A charming voice and manner were his lot;
And if we may disclose the mystick truth,
'Twas Cupid who preceptor made the youth.
He with the brother solely took a place,
That better he the sister's charms might trace;
And under this disguise he fully gained
What he desired, so well his part he feigned:
An able master, or a lover true,
To teach or sigh, whichever was in view,
So thoroughly he could attention get,
Success alike in ev'ry thing he met.

IN little time the boy could construe well
The odes of Horace:—Virgil's fable tell;
And she whose beauty caught the tutor's eyes,
A perfect mistress got of heaving sighs.
So oft she practised what the master taught,
Her stomach feeble grew, whate'er was sought;
And strange suspicions of the cause arose,
Which Time at length was driven to disclose.

MOST terribly the father raged and swore;
Our learned master, frightened, left the door,
The lady wished to take the youth for life;
The spark desired to make the girl his wife;
Both had the Hymeneal knot in view,
And mutual soft affection fondly knew.
At present love is little more than name:
In matrimony, gold's the only aim.
The belle was rich, while he had nothing got;
For him 'twas great:—for her a narrow lot.

O DIRE corruption, age of wretched ways!
What strange caprice such management displays!
Shall we permit this fatal pow'r to reign?
Base int'rest's impulse: hideous modern stain;
The curse of ev'ry tender soft delight,
That charms the soul and fascinates the sight.

BUT truce to moral; let's our tale resume;
The daughter scared; the father in a fume;
What could be done the evil to repair,
And hide the sad misfortune of the fair?
What method seek?—They married her in haste;
But not to him who had the belle debased,
For reasons I've sufficiently detailed;
To gain her hand a certain wight prevailed,
Who store of riches relished far above
The charms of beauty, warmed with fondest love.
Save this the man might well enough be thought:
In family and wealth just what was sought;
But whether fool or not, I cannot trace,

Since he was unacquainted with the case;
And if he'd known it, was the bargain bad?
Full twenty thousand pounds he with her had
A sprightly youthful wife to ease his care,
And with him ev'ry luxury to share.

HOW many tempted by the golden ore,
Have taken wives whose slips they know before;
And this good man the lady chaste believed,
So truly well she managed and deceived.
But when four months had passed, the fair-one showed.
How very much she to her lessons owed;
A little girl arrived: the husband stared
Cried he, what father of a child declared!
The time's too short: four months! I'm taken in!
A family should not so soon begin.

AWAY he to the lady's father flew,
And of his shame a horrid picture drew;
Proposed to be divorced: much rage disclosed;
The parent smiled and said, pray be composed;
Speak not so loud: we may be overheard,
And privacy is much to be preferred.
A son-in-law, like you, I once appeared,
And similar misfortune justly feared;
Complaint I made, and mentioned a divorce;
Of heat and rage the ordinary course.

THE father of my wife, who's now no more,
(Heav'n guard his soul, the loss I oft deplore,)
A prudent honest man as any round,

To calm my mind, a nice specifick found;
The pill was rather bitter, I admit;
But gilding made it for the stomach fit,
Which he knew how to manage very well:
No doctor in it him could e'er excel;
To satisfy my scruples he displayed
A CONTRACT (duly stamped and ably made),
Four thousand to secure, which he had got,
On similar occasion for a blot;
His lady's father gave it to efface
Domestick diff'rences and like disgrace:
With this my spouse's fortune he increased;
And instantly my dire complaining ceased.
From family to family the deed
Should pass, 'twill often prove a useful meed;
I kept it for the purpose:—do the same
Your daughter, married, may have equal blame.
On this the son-in-law the bond received,
And, with a bow, departed much relieved.

MAY Heav'n preserve from trouble those who find,
At cheaper rate, to be consoled inclined.

THE QUID PRO QUO; OR THE MISTAKES

DAME FORTUNE often loves a laugh to raise,
And, playing off her tricks and roguish ways,
Instead of giving us what we desire,
Mere quid pro quo permits us to acquire.
I've found her gambols such from first to last,
And judge the future by experience past.
Fair Cloris and myself felt mutual flame;
And, when a year had run, the sprightly dame
Prepared to grant me, if I may be plain,
Some slight concessions that would ease my pain.
This was her aim; but whatsoe'er in view,
'Tis opportunity we should pursue;
The lover, who's discreet, will moments seize;
And ev'ry effort then will tend to please.

ONE eve I went this charming fair to see;
The husband happened (luckily for me)
To be abroad; but just as it was night
The master came, not doubting all was right;
No Cloris howsoe'er was in the way;
A servant girl, of disposition gay,
Well known to me, with pretty smiling face,
'Tis said, was led to take her lady's place.
The mistress' loss for once was thus repaid;
The barter mutual:—wife against the maid.

WITH many tales like this the books abound;
But able hands are necessary found,
To place the incidents, arrange the whole,
That nothing may be forced nor feel control.
The urchin blind, who sees enough to lay
His num'rous snares, such tricks will often play.
The CRADLE in Boccace excels the most,
As to myself I do not mean to boast,
But fear, a thousand places, spite of toil,
By him made excellent, my labours spoil.
'Tis time howe'er with preface to have done,
And show, by some new turn, or piece of fun,
(While easy numbers from my pencil flow,)
Of Fortune and of Love the quid pro quo.
In proof, we'll state what happened at Marseilles:
The story is so true, no doubt prevails.

THERE Clidamant, whose proper name my verse,
Prom high respect, refuses to rehearse,
Lived much at ease: not one a wife had got,
Throughout the realm, who was so nice a lot,
Her virtues, temper, and seraphick charms,
Should have secured the husband to her arms;
But he was not to constancy inclined;
The devil's crafty; snares has often twined
Around and round, with ev'ry subtle art,
When love of novelty he would impart.

THE lady had a maid, whose form and size,
Height, easy manners, action, lips, and eyes,
Were thought to be so very like her own,

That one from t'other scarcely could be known;
The mistress was the prettiest of the two;
But, in a mask where much escapes the view,
'Twas very difficult a choice to make,
And feel no doubts which better 'twere to take.

THE Marseillesian husband, rather gay,
With mistress Alice was disposed to play;
(For such was called the maid we just have named;)
To show coquettish airs the latter aimed,
And met his wishes with reproof severe;
But to his plan the lover would adhere,
And promised her at length a pretty sum:
A hundred crowns, if to his room she'd come.
To pay the girl with kindness such as this,
In my opinion, was not much amiss.
At that rate what should be the mistress' price?
Perhaps still less: she might not be so nice.
But I mistake; the lady was so coy,
No spark, whatever art he could employ,
How cleverly soe'er he laid the snare,
Would have succeeded, spite of ev'ry care.
Nor presents nor attentions would have swayed;
Should I have mentioned presents as an aid?
Alas! no longer these are days of old!
By Love both nymph and shepherdess are sold;
He sets the price of many beauties rare;
This was a god;—now nothing but a mayor.

O ALTERED times! O customs how depraved!
At first fair Alice frowardly behaved;

But in the sequel 'gan to change her way,
And said, her mistress, as the foll'wing day,
A certain remedy to take designed;
That, in the morning then, if so inclined,
They could at leisure in the cavern meet;—
The plan was pleasing: all appeared discreet.

THE servant, having to her mistress said,
What projects were in view: what nets were spread;
The females, 'tween themselves, a plot contrived,
Of Quid pro quo, against the hour arrived.
The husband of the trick was ne'er aware,
So much the mistress had her servant's air;
But if he had, what then? no harm of course;
She might have lectured him with double force.

NEXT day but one, gay Clidamant, whose joy
Appeared so great, 'twas free from all alloy,
By hazard met a friend, to whom he told
(Most indiscreetly) what to him was sold;
How Cupid favoured what he most required,
And freely granted all he had desired.
Though large the blessing, yet he grudged the cost;
The sum gave pain: a hundred crowns were lost!
The friend proposed they should at once decide,
The charge and pleasure 'tween them to divide.
Our husband thought his purse not over strong,
That saving fifty crowns would not be wrong.
But then, on t'other hand, to lend the fair,
In ev'ry view had got an awkward air;
Would she, as was proposed, consent to two?

To keep things secret would their lips be true?
Or was it fair to sacrifice her charms,
And lay her open thus to dire alarms?

THE friend this difficulty soon removed,
And represented that the cavern proved
So very dark, the girl would be deceived;
With one more shrewd the trick might be achieved.
Sufficient howsoever it would be,
If they by turns, and silent, could agree
To meet the belle, and leave to Love the rest,
From whom they hoped assistance if distressed.
Such silence to observe no hurt could do,
And Alice would suppose, a prudent view
Retained the tongue, since walls have often ears,
And, being mum, expressive was of fears.

WHEN thus the two gallants their plan had laid,
And ev'ry promised pleasure fully weighed,
They to the husband's mansion made their way,
Where yet the wife between the bed-clothes lay.
The servant girl was near her mistress found;
Her dress was plain: no finery around;
In short, 'twas such that, when the moment came;
To fail the meeting could not be her aim.

THE friends disputed which the lead should take,
And strong pretensions both appeared to make;
The husband, honours home would not allow:
Such compliments were out of fashion now.
To settle this, at length three dice they took;

The friend was highest placed in Fortune's book.
The both together to the cavern flew,
And for the servant soon impatient grew;
But Alice never came, and in her room
The mistress, softly treading 'mid the gloom,
The necessary signal gently gave,
On which she entered presently the cave,
And this so suddenly, no time was found
To make remarks on change or errors round,
Or any diff'rence 'tween the friend and spouse;
In short, before suspicions 'gan to rouse,
Or alteration lent the senses aid:—
To LOVE, a sacrifice was fully made.
The lucky wight more pleasure would have felt,
If sensible he'd been with whom he dealt:
The mistress rather more of beauty had,
And QUALITY of course must something add.

THIS scene just ended, t'other actor came,
Whose prompt arrival much surprised the dame,
For, as a husband, Clidamant had ne'er
Such ardour shown, he seemed beyond his sphere.
The lady to the girl imputed this,
And thought, to hint it, would not be amiss.

THE entertainment o'er, away they went
To quit the dark abode they were intent.
The partner in amour repaired above;
But when the husband saw his wedded love
Ascend the stairs, and she the friend perceived,
We well may judge how bosoms beat and heaved.

THE master of the house conceived it best
To keep the whole a secret in his breast.
But to discover ALL, his lovely rib
Appeared disposed, though wives can often fib;
The silliest of the throng (or high or low),
Most perfectly the science seem to know.

SOME will pretend that Alice, in her heart
Was sorry she had acted such a part,
And not a better method sought to gain
The money which had caused her master's pain;
Lamented much the case, and tried to please
By ev'ry means that might his trouble ease.
But this is merely with design to make
The tale a more impressive feature take.

TWO questions may agitate around;
The one, if 'mong the brotherhood renowned,
The husband, who thus felt disgraced,
Should (with the usual ornaments) be placed?
But I no grounds for such conclusion see:
Both friend and wife were from suspicion free;
Of one another they had never thought,
Though in the mystick scene together brought.
The other is:—Should she, who was misused,
Have sought revenge for being so abused?
Though this sufficiently I have maintained,
The lady inconsolable remained.

HEAV'N guard the FAIR, who meet with ills like these,
And nothing can their wounded minds appease:

I many know howe'er, who would but laugh,
And treat such accidents as light as chaff.
But I have done: no more of that or this;
May ev'ry belle receive her lot of bliss!

*** END OF THE PROJECT GUTENBERG EBOOK TALES AND
NOVELS OF J. DE LA FONTAINE — VOLUME 24 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project

Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund.

If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.